

The Foreign Contribution (Regulation) Rules, 1976

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[Rule THE-FOREIGN-CONTRIBUTION-REGULATION-RULES-1976 of 1976](#)

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[The Foreign Contribution \(Regulation\) Rules, 1976](#)

[11.](#)

[/553](#)

[In exercise of the powers conferred by section 30 of the Foreign Contribution \(Regulation\) Act, 1976 \(49 of 1976](#)

[\), the Central Government hereby makes the following rules, namely:--](#)

[1.](#)

[Short title and commencement .-\(1\) These rules may be called The Foreign Contribution \(Regulation\) Rules, 1976.](#)

[\(2\)](#)

[They shall come into force on the 5th day of August, 1976.](#)

[2.](#)

Definitions .-In these rules, unless the context otherwise requires,--

(a)

"Act" means the Foreign Contribution (Regulation) Act, 1976;

(b)

"Form" means a form appended to these rules;

(c)

"section" means a section of the Act;

(d)

["year" means the accounting year commencing from the 1st day of April and ending on 31st day of March of the next calendar year.]

3.

Application for obtaining prior permission to receive foreign contribution or foreign hospitality .-An application for obtaining prior permission of the Central Government to--

(a)

receive foreign contribution under sub-section (1) of section 5, or clause (a) of sub-section (2) of that section, shall be made in Form FC 1;

(aa)

[receive foreign contribution under proviso to sub-section (1) of section 6, or under sub-section (1-A) of that section or clause (b) of section 10, shall be made in Form FC 1-A;]

(b)

accept foreign hospitality under section 9 [or clause (d) of section 10]

[Inserted by G.S.R. 755(E), dated 5.11.1984 (w.e.f. 5.11.1984).]

, shall be made in Form FC 2.

[3-A. Application for registration

.-An application for registration of an association referred to in sub-section (1) of section 6 for acceptance of foreign contribution shall be made in Form FC 8.]

4.

Intimation regarding receipt of foreign contribution or scholarship or stipend or any payment of a like nature of foreign hospitality .-(1) An intimation as to the receipt of--

(a)

[foreign contribution by an association referred to in sub-sections (1) and (1-A) of section 6 shall be given for every year beginning on the 1st day of April in Form FC 3 in duplicate, [within nine months][of the closure of the year:-

[Substituted by G.S.R. 179(E), dated 25.3.1991 (w.e.f. 1.4.1991).]

Provided that a NIL report shall also be furnished. The intimation to be furnished for the year beginning on the 1st day of April, 1991 shall also include the receipt and utilisation of foreign contribution during the period commencing from 1st January, 1991 and ending on 31st March, 1991;]

(b)

foreign contribution by a candidate for election, referred to in sub-section (2) of section 6 shall be given in Form FC 4, within fifteen days from the date on which he is duly nominated as a candidate for election;

(c)

any scholarship, stipend or any payment of a like nature, from any foreign source in relation to which an intimation is required to be given under sub-section (1) of section 7, shall be given in Form FC 5, within thirty days of receipt of such scholarship, stipend or other payment of a like nature:

Provided that where the person receiving the scholarship, stipend or any payment of a like nature is residing outside India, the intimation shall be given within sixty days from the date of receipt of such scholarship, stipend or other payment of a like nature;

(d)

foreign hospitality, referred to in the proviso to section 9, shall be given on plain paper within thirty days from the date of receipt of such hospitality specifying the particulars as to the receipt of such hospitality and the source from which and the manner in which such hospitality was received.

5.

Intimation of receipt of scholarship, stipend or any payment of a like nature, when not necessary .-It shall not be necessary for a citizen of India to give any intimation under section 7 regarding receipt of scholarship, stipend or any payment of a like nature from any foreign source, if the value of such scholarship, stipend or other payment does not exceed, during an academic year, rupees thirty-six thousand.

Explanation .-In calculating the value,--

(a)

the amount received by the citizen for the purchase of books, clothing and equipment and for sight-seeing in a foreign country or territory shall be taken into account; but

(b)

the amount spent in travel by air in economy class from India to a foreign country or territory and back to India from such foreign country or territory, and the amount spent by the foreign source in respect of such citizen towards tuition and other fees, shall not be taken into account.

6.

Authority to whom an application or intimation to be sent .-Any application or intimation referred to [in rule 3, rule 3-A or rule 4], as the case may be, shall be made or given to the Secretary to the Government of India in the Ministry of Home Affairs, New Delhi and such application or intimation shall be sent by registered post.

7.

Manner of service of prohibitory order or any other order or direction .-A prohibitory order under section 12 or any other order or direction made or issued under the Act, shall be served on the person concerned in the following manner, that is to say,--

(a)

by delivering or tendering it to that person or to his duly authorised agent; or

(b)

by sending it to him by registered post acknowledgment due to the address of his last known place of residence or the place where he carries on, or is known to have last carried on, business or the place where he personally works for gain or is known to have last worked for gain, and in case the person is an organisation or an association, to the last known address of the office of such organisation or association;

(c)

if it cannot be served in any of the manners aforesaid, by affixing it on the outer door or some other conspicuous part of the premises in which that person resides, or carries on, or is known to have last carried on, business, or personally works for gain, or is known to have last worked personally for gain, and in case the person is an organisation or an association, on the outer door or some other conspicuous part of the premises in which the officer of the organisation or association is located, or is known to have been last located, and the written report whereof should be witnessed by at least two persons.

8.

Maintenance of accounts .-(1) A separate set of accounts and records shall be maintained, exclusively for foreign contribution received and utilised,--

(a)

in Form FC 6, where the foreign contribution relates only to articles as referred to in item (i) of sub-clause (c) of clause (1) of section 2;

(b)

in the cash book and ledger account on double entry basis, where the foreign contribution relates to currency received and utilised, and a separate bank account shall be maintained in respect of such contribution;

(c)

in Form FC 7, where the foreign contribution relates to foreign securities.

(2)

[Every account specified in sub-rule (1) shall be maintained on an yearly basis, commencing on the 1st day of [April][each year and every such yearly account, duly certified by a chartered accountant [in Form FC 3 along with a balance sheet and statement of receipts and payments]

[Substituted by S.O. 860(E), dated 29.12.1977 (w.e.f. 29.12.1977).]

[, shall be furnished, in duplicate, to the Secretary to the Government of India, in the Ministry of Home Affairs, New

Delhi, [within nine months]

[Substituted by S.O. 860(E), dated 29.12.1977 (w.e.f. 29.12.1977).]

[of the closure of the year.]

[Substituted by S.O. 860(E), dated 29.12.1977 (w.e.f. 29.12.1977).]

Explanation .-In this rule, "Chartered Accountant" has the meaning assigned to it in the Chartered Accountants Act, 1949 (

38 of 1949

).

9.

Limits up to which an officer, not below the rank of an Assistant Sessions Judge may make adjudication of confiscation

.-An officer referred to in clause (b) of section 19 may adjudge confiscation in relation to any article or currency seized under section 16, if the value of such article or the amount of such currency exceeds one thousand rupees but does not exceed fifty thousand rupees.

FORM FC - 1

[See rule 3(a)]

Application For Seeking Prior Permission Of The Central Government For Accepting Foreign Contribution By Or On Behalf Of An Organisation Of Political Nature Not Being A Political Party

[Section 5 (1) and 5 (2) (a) of the Foreign Contribution (Regulation) Act, 1976]

1. (a) Particulars of the Organisation

(Full name in block letters, and address)

(b)

Address of the Principal/Head Office of the Organisation

2. Full particulars of the person applying on behalf of the Organisation

(a)

Name is full (in block letters)

(b)

Name of father

(c)

Occupation

(d)

Residential address

(e)

If an office-bearer, the office held in the Organisation.

3. Reference of the order published by the Central Government in the Official Gazette specifying the Organisation as an "Organisation of Political Nature, not being a political party".

4. Nature and full details of contribution including value, to be received.

5. The mode/channel of receipt.

6. Purpose for which foreign contribution is proposed is to be received.

7. Particulars of the foreign source from which contribution is to be received :

(a)

If an individual, his personal particulars including name, present address, permanent address, nationality, profession.

(b)

If an Organisation/Institution/Association/Trust/Foundation/Trade Union, etc., full particulars thereof including-

(i)

Full name and complete address

(ii)

Address of Head Office/Principal Office

(iii)

Aims and objects

(iv)

Particulars of important office-bearers

8. Nature of connection/dealings with the foreign source

9. Any other information of significance which the applicant may like to furnish

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....

Signature of the Applicant

Place.....

Date.....

Note. - In the case of application by an Organisation, it should be signed by the chief functionary.

[FORM FC 1 - A]

[See rule 3 (aa)]

Form Of Application For Seeking Prior Permission From The Central Government Under The Foreign Contribution (Regulation) Ac, 1976 (Hereinafter Referred To As The Act) For The Acceptance Of Foreign Contribution By An Association Having A Definite Cultural, Economic, Educational, Religious Or Social Programme

No..... Date.....

To

The Secretary to the Government of India,
Ministry of Home Affairs, Lok Nayak Bhavan, Khan Market,
New Delhi - 110003

Subject:- Application for seeking the prior permission of the Central Government under the Foreign Contribution (Regulation) Act, 1976 for acceptance of foreign contribution.

Sir,

I,....., on behalf of the Association named hereafter, apply for seeking prior permission of the Central Government for the acceptance of foreign contribution under proviso to sub-section (1) of section 6 or under sub-section (1-A) of that section or clause (b) of section 10 of the Act.

1. (i). Name of the Association and its complete postal address

Name

Address

Town/City

State

District

Pin Code

(ii)

If the Association is a registered trust or Society please indicate its -

(a)

registration number

(b)

place of registration

(c)

date of registration certified copy of the registration certificate to be attached).

(iii)

Nature of Association -

(a)

religious, (b) cultural, (c) economic, (d) educational, (e) social.

Note. - If a religious Association, then state whether -

(a)

Hindu, (b) Sikh, (c) Muslim, (d) Christian, (e) Buddhist, (f) Others.

(iv)

Please indicate the main aim(s) and object(s) of the Association (enclose copy of the Memorandum of Association and/or the Articles of Association, if applicable).

(v)

Please furnish the names and address of the members of the Executive committee/Governing Council, etc., of the Association, including the Chief Functionary, in the following manner:

Sl.

No.

Name

Name of Father/Husband

Nationality

Occupation

Office held in the Association, if any

Relationship with other office bearers, if any

Address

1

2

3

4

5

6

7

8

2. Please indicate whether any member of the Executive Committee /Governing Council, etc., of the Association, including the Chief Functionary has, in the discharge of his/her official functions -

(a)

been convicted by any court of law,

(b)

a prosecution for any offence pending against him/her,

(c)

been found guilty of diversion or misutilisation of funds of the Association or any other association in the past.

3. Please indicate whether the applicant Association -

(a)

is a branch/unit/associate of foreign based organisation or another association already registered under the Act. If so, name and address of the parent organisation should be furnished;

(b)

has been directed by the Central Government in terms of the proviso to sub-section (1) of section 6 of the Act to seek prior permission. If so, the number and date of the relevant order should be furnished.

(c)

has been directed by the Central Government in terms of section 10 of the Act to seek prior permission. If so, the number and date of the relevant order should be furnished.

4. Please indicate -

(i)

whether the Association ever applied for registration under the Act in the past, if so,-

(a)

the date of submission of application for registration,

(b)

the number and date of last reference, if any, received from the Ministry,

(c)

whether registration was refused,

(d)

whether the application for registration is still pending.

(ii)

whether the Association has close links with another association, or its unit or branch which has been -

(a)

refused registration under the Act,

(b)

prohibited from accepting foreign contribution.

5. Please indicate -

(i)

whether the Association was, -

(a)

granted prior permission to receive foreign contribution under the Act in the past. If so, the number and date of the letter granting prior permission should be furnished;

(b)

whether the account of the receipt and utilisation of the foreign contribution received above was sent to the Central Government in the prescribed form. If so, the date of submission of the accounts should be furnished;

(c)

If the prior permission was granted in the current year, details of the foreign contribution received and utilised, purpose-wise, showing the unspent balance should be annexed.

(ii)

whether the Association has received foreign contribution without the prior permission of the Central Government, in the past. If so, -

(a)

full particulars of the foreign contribution received, address of the branch of the bank and account number in which deposited should be furnished;

(b)

whether the said violation has been condoned by the Central Government;

(c)

whether the Association has been prohibited from accepting foreign contribution under the Act.

6. Please indicate whether the Association is owner / printer / publisher, editor of a publication which is a "registered newspaper" under the Press and Registration of Books Act, 1867.

7. Please furnish -

(i)

Details of the activities of the Association during the past three years;

(ii)

Copies of the audited statement of accounts of the Association for the past three years.

8. (i) Please indicate -

(a)

the nature and value of the foreign contribution to be received (a copy of the latest commitment letter from the donor should be furnished);

(b)

the purpose for which the foreign contribution is proposed to be received and utilised indicating also the geographical area(s) to be covered.

(ii)

a copy of the proposal/project which has been approved by the foreign source for funding, including projected outlays / budget breakup, should be enclosed.

(iii)

a copy of the proposal/project which has been approved for funding out of the foreign contribution should be enclosed (This column applies only to subsequent recipients).

9. Please indicate -

(i)

the name of the bank and address of the branch through which the foreign contribution is proposed to be received;

(ii)

the account number in the said branch of the bank.

10.

Please indicate the particulars of the foreign source or the sources from which the foreign contribution is proposed to be received -

(a)

If an individual, his personal particulars including name, present address, permanent address, nationality, profession;

(b)

If an organisation / institution / association / trust / trade union etc., full particulars thereof, including -

(i)

Full name and complete address.

(ii)

Address of the Head office / principal office.

(iii)

Particulars of Chief Functionary and important office bearers.

(c)

Please indicate whether the foreign source is a Government of a foreign country or agency thereof.

[10-A. Whether a recommendation certificate from the competent authority is attached

(Yes/No)]*

11. Any other information which the Association may like to furnish.

Yours faithfully,

.....

Signature of the Applicant

[Name of the Chief Functionary or authorised office bearer (with seal of the Association)]

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....

Signature of the Applicant

[Name of the Chief Functionary or authorised office bearer (with seal of the Association)]

Place.....

Date.....

*If the foreign contribution, whether currency or article is to be received from any person or association who has received the same as first, second or subsequent recipient, particulars of such person or association should be given against column 10 above.

Note. -

1. An incomplete application i.e., without necessary documents/details/explanations is likely to be rejected summarily.
2. In case the space against any column is insufficient, separate annexure should be attached.
3. Please use CAPITAL LETTERS.
4. The application should be signed by the Chief Functionary or authorised office bearer of the Association.]

[CERTIFICATE

[Inserted by G.S.R. 63(E), dated 24-1-2000 (w.e.f. 25-1-2000)]

(To be submitted along with the application)

This is to certify that the.....(name of the association) have its registered office at.....(address) has been formed for undertaking activities in its chosen.....(economic, educational, cultural, religious and social)* field of activity. The antecedents of the organisation have been verified and there is nothing adverse against them.

2. Its proposed project would be undertaken in the (District) of (State). The said project will be beneficial to the people living in the area.

3. The grant of prior permission to the aforementioned association to accept foreign contribution amounting to (currency/amount) from(name and address of foreign donor) under the foreign Contribution (Regulation) Act, 1976 for the said project is recommended.

(Recommending Authority)**

(With Seal)

*Strike out whichever is not applicable.

**Any concerned -

1.

) Collector of District.

2.

) Department of the State Government.

3.

) Ministry or Department of the Government of India.]

[FORM FC 2]

[Substituted by G.S.R. 755(E), dated 5-11-1984 (w.e.f. 5-11-1984)]

[See rule 3(b)]

Application For Seeking Prior Permission Of The Central Government To Accept Foreign Hospitality

[Section 9 read with section 10(d) and 11(1) of the Foreign Contribution (Regulation) Act, 1976]

1. Name in full (in block letters)

2. Date of birth:

3. Name of father/husband

4. Present address

5. Permanent address

6. Passport particulars (if already in possession)

7. Status:

(a)

Member of Legislature

(b)

Office-bearer of a political party

(c)

Judge of Supreme Court/High Court

(d)

Government servant

(e)

Employee of a Company/Corporation

(f)

Any person or class of persons not specified in section 9

8. Names of countries/places to be visited with duration of stay

9. The countries and places where foreign hospitality is to be accepted

10. Duration and purpose of visit to the country(ies)/Place(s) mentioned in column 9 with specific dates.

11. Particulars of host(s): -

(a)

If an individual, his personal particulars including name, present address, permanent address, nationality, profession.

(b)

If an Organisation/Institution/Association/Trust/ Foundation/Trade Union etc., full particulars thereof including -

(i)

Full name and complete address

(ii)

Address of Head office/Principal office

(iii)

Aims and Objects

(iv)

Particulars of important office-bearers.

12.

*Full particulars, as in serial 11(a) and (b) of the foreign source in case the actual source extending the hospitality** is located in a country other than actually proposed to be visited.

13.

Nature and duration of foreign hospitality proposed to be accepted with specific dates and with specific details.

14.
Nature of connection/dealing with the host and / or foreign source extending the hospitality.

15.
Approximate expenditure to be incurred on hospitality.

16.
Any other information of significance which the applicant may like to furnish.

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....
Signature of Applicant
Place.....
Date.....

*Delete if not applicable.

** "Foreign hospitality" means any offer, not being a purely casual one, made by a foreign source for providing a person with the cost of travel to any foreign country or territory or with free board, lodging, transport or medical treatment.

[FORM FC 3]

[Substituted by G.S.R. 8(E), dated 4-1-1999 (w.e.f. 4-1-1999)]

[See rule 4(a)]

Account of Foreign Contribution of the year ending on 31st March.....

1. Association's details

(i) Name and address (in Capital Letters)

:
.....

(ii) Registration number and date

:
.....

[under the Foreign Contribution
(Regulation) Act, 1976]:

(iii) Prior permission number and date, if not registered

:
.....

(iv) Nature of association

:
.....

(1) Cultural (2) Economic (3) Educational (4) Religious (5) Social

(v) Denomination in case of religious association

:
(a) Hindu (b) Sikh (c) Muslim (d) Christian
(e) Buddhist
(f) Others

[1-A (i) Total amount of foreign contribution received during the year:.....

(ii)
Interest earned on the foreign contribution during the year, -

(a)
In the designated bank account:
(b)

On investments made (Fixed Deposit Receipt, etc.) during the year or in the preceding years:]

[Inserted by G.S.R. 557(E), dated 26-7-2001 (w.e.f. 26-7-2001)]

2. Purpose(s) for which foreign contribution has been received and utilised:

(in Rupees)

Sl. No

Purpose

Previous balance

Receipt during the year

Total

Utilised

Balance

In Cash

In kind (value)

As first recipient

As second /Subsequent recipient

In cash

In kind (value)

In cash

In kind (value)

In cash

In kind (value)

In cash

In kind (value)

1

2

3

4

5

6

7

8

9

(5+6+7+8)

10

11

12

13

1. [Celebration of national events (Independence / Republic day) / festivals, etc.

2. Theatre / Films.

3. Maintenance of places of historical and cultural importance.

4. Preservation of ancient / tribal art forms.

5. Research.

6. Cultural shows.

7. Setting-up and running handicraft centre / cottage and Khadi industry / social forestry projects.

8. Animal husbandry projects.

9. Income generation projects / schemes.

10. Micro-finance projects, including setting-up banking co-operatives and self-help groups.

11. Agricultural activity.

12. Rural Development.

13. Construction and maintenance of school / college.

14. Construction and running of hostel for poor students.

15. Grant of stipend / scholarship / assistance in cash and kind to poor / deserving children.

16. Purchase and supply of educational material - books, notebooks, etc.

17.

Conducting adult literacy programs.

18.

Education / Schools for the mentally challenged.

19.

Non-formal education projects / coaching classes.

20.

Construction / Repair / Maintenance of places of worship.

21.

Religious schools / education of priests and preachers.

22.

Publication and distribution of religious literature.

23.

Religious functions.

24.

Maintenance of priests / preachers / other religious functionaries.

25.

Construction / Running of hospital / dispensary / clinic.

26.

Construction of community halls, etc.

27.

Construction and Management of old age home.

28.

Welfare of the aged / widows.

29.

Construction and Management of Orphanage.

30.

Welfare of the orphans.

31.

Construction and Management of dharamshala / shelter.

32.

Holding of free medical / health / family welfare / immunisation camps.

33.

Supply of free medicine, and medical aid, including hearing aids, visual aids, family planning aids etc.

34.

Provision of aids such as Tricycles, calipers, etc., to the handicapped.

35.

Treatment / Rehabilitation of persons suffering from leprosy.

36.

Treatment / Rehabilitation of drug addicts.

37.

Welfare / Empowerment of women.

38.

Welfare of children.

39.

Provision of free clothing / food to the poor, needy and destitute.

40.

Relief / Rehabilitation of victims of natural calamities.

41.

Help to the victims of riots / other disturbances.

42.

Digging of bore wells.

43.

Sanitation including community toilets, etc.

44.
Vocational training - tailoring, motor repairs, computers, etc.
45.
Awareness Camp / Seminar / Workshop / Meeting / Conference.
46.
Providing free legal aid / Running legal aid centre.
47.
Holding sports meet.
48.
Awareness about Acquired Immune Deficiency Syndrome (AIDS) / Treatment and rehabilitation of persons affected by AIDS.
49.
Welfare of the physically and mentally challenged.
50.
Welfare of the Scheduled Castes.
51.
Welfare of the Scheduled Tribes.
52.
Welfare of the Other Backward Classes.
53.
Environmental programs.
54.
Survey for socio-economic and other welfare programs.
55.
Establishment expenses, -
 - (i)
Asset building;
 - (a)
Establishment of Corpus Fund, and
 - (b)
Purchase of land;
 - (ii)
Construction / Extension / Maintenance of office, administrative and other buildings;
 - (iii)
Payment of salaries / honorarium;
 - (iv)
Publication of newsletter / literature / books etc.;
 - (v)
Other expenses.
56.
Activities other than those mentioned above (Furnish details).]
[Substituted by G.S.R. 557(E), dated 26-7-2001 (w.e.f. 26-7-2001)]
3. Name and address of the designated branch of the bank and account number (as specified in the application for registration / prior permission or permitted by the Central Government).
A/c No.....
Bank:.....
Branch.....
Address.....
Pin.....
4. Donorwise receipts of foreign contribution
(in Rupees)

Sl. No.

Institutional/individual/other donors

Names(s) and address(es)

Purpose(s)

Date and month of receipt

Amount

1

2

3

4

5

6

(i) Institutional donors:

(ii) Individual donors above Rupees one lakh

(iii) Individual donors below Rupees one lakh (Only Column 4 and 6 need to be filled)

Total

5. Country wise receipt of foreign contribution:

(in rupees)

Sl.

No.

Name of the country

Amount

1

2

3

Total

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct. I also affirm that the foreign contribution has been utilised for the purpose(s) for which the association has been registered / prior permission obtained. To the best of my knowledge, I have not concealed or suppressed any fact.

.....

Signature of the Chief Functionary

(Name of the Chief Functionary and Seal of the Association)

Place.....

Date.....

(Certificate to be given by Chartered Accountant)

I/We have audited the account of (name of association and its full address including State, District and Pin Code, if registered society, its registration number and State of registration, for the year ending 31st March, and examined all relevant books and vouchers and certify that according to the audited account-

(i)
the brought forward foreign contribution at the beginning of the year was Rs

(ii)
foreign contribution of/worth Rs..... was received by the Association during the year was Rs.....

(iii)
the balance of unutilised foreign contribution with the association at the end of year was Rs.....

(iv)
Certified that the association has maintained the account of foreign contribution and records relating thereto in the manner specified in section 13 of the Foreign Contribution (Regulation) Act, 1976 read with sub-rule (1) of rule 8 of the Foreign Contribution (Regulation) Rules, 1976.

(v)
The information furnished in this certificate and in the enclosed balance sheet and statement of Receipt and Payment is

correct and checked by me/us.

Place.....

Date.....

.....

Signature of Chartered Accountant With Seal, Address and Registration number.]

FORM FC 4

[See rule 4(b)]

Intimation To The Central Government Of Receipt Of Foreign Contribution Received By A Candidate For Election

[Section 6(2) of the Foreign Contribution (Regulation) Act, 1976]

1. Name in full (in block letters)

2. Date of birth

3. Name of father

4. Present Address

5. Permanent Address

6. Date which duly nominated as a candidate for election to a Legislature and particulars of Legislature. [See section 2(1)(b) and 2(1)(f) of the Act]

7. Full particulars of foreign contribution received within 180 days immediately preceding the date on which duly nominated as a candidate for election to the Legislature.

8. Nature and full details of the contribution including value.

9. The mode/channel of receipt.

10. Purpose for which contribution was received.

11. Particulars of the foreign source from which contribution received:

(a)

If an individual, his personal particulars including name, present address, permanent address, nationality, profession.

(b)

If an Organisation / Institution / Association / Trust / Foundation / Trade Union etc. full particulars thereof including:-

(i)

Full name and complete address

(ii)

Address of Head Office/Principal Office

(iii)

Aims and objects

(iv)

Particulars of important office-bearers

12. Nature of connection/dealings with the foreign sources.

13. Details of actual utilisation of the contribution-

(a)

Specific purposes for which utilised.

(b)

Full description of the manner in which utilised.

14. Any other information of significance which the applicant may like to furnish.

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....

Signature of the Candidate

Place.....

Date.....

Certified that the above declaration was signed by Shri.....S/o.....resident of..... a candidate for election to (*).....before me on this.....day of 20.....

.....

Signature

(Name in block letters)

Designation.....

(To be signed by a Class I Gazetted Officer** or a 1st Class Magistrate).

* Here specify 'Legislature' as defined in Section 2(1)(f) of the Act.

** Of the State/Central Government.

FORM FC 5

[See Rule 4(C)]

Intimation To The Central Government Of Receipt Of Scholarship, Stipend Or Any Payment Of A Like Nature From A Foreign Source

[Section 7(1) and 7(2) of the Foreign Contribution (Regulation) Act, 1976]

1. Name in full (in block letters)

2. Date of birth

3. Name of father

4. Present address

5. Permanent address

6. Passport particulars

7. Specific details of occupation/profession

8. Particulars of the foreign source from whom Scholarship, Stipend or payment of like nature was received -

(a)

If an individual, his personal particulars, including name, present address, permanent address, nationality, profession

(b)

If an organization / Institution / Association / Trust / Foundation / Trade Union etc., full particulars thereof including:-

(i)

Full name and complete address.

(ii)

Address of Head Office / Principal Office.

(iii)

Aims and objects.

(iv)

Particulars of important Office-bearers.

9. Nature and full details of scholarship, stipend or any payment of a like nature received from foreign source, indicating

(a) total amount and its break-up under various heads like cost of journey, equipment, clothing, maintenance, tuition fees, residence fees, books, etc., and (b) mode / channel of receipt.

10. Purpose of the scholarship, stipend or any payment of a like nature with specific details of courses attended/to be attended

11. Duration of stay abroad with dates.

12. Any other information of significance, which the applicant may like to furnish.

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....

Signature of the applicant

Place.....

Date.....

FORM FC 6

[See rule 8 (a)]

Foreign Contribution (Articles) Accounts

Description of the Article

RECEIPT

Date

Name and address of the person from whom received

Mode of receipt

Purpose of receipt

Quantity received

Approx.

value of articles received

Date of intimation sent to the Central Government

1

2

3

4

5

6

7

Utilisation/disposal Quantity

Date

Name and address of the person to whom issued, sold or otherwise transferred

Purpose for which issued or otherwise transferred

Utilized by the organization

Sold

Otherwise transferred

If sold the amount for which sold

Reference to entry in the Foreign Contribution (Currency) Account

Balance in stock

8

9

10

11

12

13

14

15

16

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

.....

Signature

Place.....

Date.....

FORM FC 7

[See rule 8 (c)]

Foreign Contribution (Securities) Account

(1)

Nature of securities

(2)

Nominal value of each security

Date

Name and address of the person from whom received

Distinguishing number of each security

Total of securities

Total nominal value of securities

Particulars of permission of the Reserve Bank of India to acquire or to hold foreign securities

Particulars of intimation sent to the Central Government

Date

Dividend or interest received

Date up to which dividend or interest has been received

1

2

3

4

5

6

7

8

9

10

Details of Dividends/ Interest received

Reference to the credit entry in the Foreign Contribution (Currency) Account

Date

Name and address of the person to whom sold/transferred

Total No. of securities sold/transferred

Distinguishing number of each security transferred

Total amount for which sold/transferred

Particulars of permission of the Reserve Bank of India to sell/transfer securities

Particulars of intimation sent to the Central Government

Reference to the entry in the Foreign Contribution (Currency) Account

11

12

13

14

15

16

17

18

19

DECLARATION

I hereby declare that the above particulars furnished by me are true and correct.

Place.....

Date.....

.....

Signature

[FORM FC 8]

[Inserted by G.S.R. 8(E), dated 4-1-1999 (w.e.f. 4-1-1999)]

(see rule 3-A)

Form Of Application For Seeking Registration With The Central Government Under The Foreign Contribution (Regulation) Act, 1976 For The Acceptance Of Foreign Contribution By An Association Having A Definite Cultural, Economic, Educational, Religious Or Social Programme

Date

No.....

To

The Secretary to the Government of India,
Ministry of Home Affairs, Lok Nayak Bhavan, Khan Market,
New Delhi - 110003.

Subject:- Application for registration under the Foreign Contribution (Regulation) Act, 1976 for the acceptance of foreign

contribution.

Sir,

I, on behalf of the Association named hereafter apply for registration of the Association under clause (a) of sub-section (1) of section 6 of the Act for the acceptance of foreign contribution.

1. (i). Name of the Association and its complete postal address

Name

Address

Town/City

District

State

Pin Code

(ii)

If the Association is a registered trust or Society indicate its -

(a)

registration number

(b)

place of registration

(c)

date of registration (certified copy of the registration certificate to be attached)

(iii)

Nature of Association-

(a)

religious, (b) cultural, (c) economic, (d) educational, (e) social.

Note. - If a religious Association, then state whether-

(a)

Hindu, (b) Sikh, (c) Muslim, (d) Christian, (e) Buddhist, (f) Others.

(iv)

Please indicate -

(a)

the main aim(s) and object(s) of the Association (enclose a copy of the Memorandum of Association and/or the Articles of Association, if applicable);

(b)

the main object(s) and definite programme(s) for which the foreign contribution is to be accepted/utilised

(v)

Please furnish the names and addresses of the members of the Executive Committee/ Governing Council, etc., of the Association, including the Chief Functionary, in the following manner:

Sl.

No.

Name

Name of Father/Husband

Nationality

Occupation

Office held in the Association, if any

Relationship with office bearers, if any

Address

1

2

3

4

5

6

7

8

2. Please indicate whether any member of the Executive Committee /Governing Council, etc., of the Association, including the Chief Functionary has in the discharge of his/her official functions -

(a)

been convicted by any court of law;

(b)

a prosecution for any offence pending against him/her;

(c)

been found guilty of diversion or misutilisation of funds of the Association or any other association in the past.

3. Please indicate whether the applicant Association is a branch/unit/associate of foreign based organisation or another association already registered under the Act. If so, the name and address of the parent organisation.

4. Please indicate -

(i)

whether the Association was, -

(a)

granted prior permission to receive foreign contribution under the Act in the past. If so, the number and date of the letter granting prior permission should be furnished;

(b)

whether the account of the receipt and utilisation of the foreign contribution received above was sent to the Central Government in the prescribed form. If so, the date of submission of the accounts should be furnished;

(ii)

whether the Association has received foreign contribution without the prior permission under Act in the past. If so,-

(a)

full particulars of the foreign contribution received along with complete address of the bank branch and bank account number in which deposited should be furnished;

(b)

said violation has been condoned by the Central Government;

(c)

Association has been prohibited from accepting foreign contribution under the Act.

5. Please indicate whether the Association is functioning as editor, owner, printer or publisher of a publication required to be registered as "newspaper" under the Press and Registration of Books Act, 1867. If so, the details thereof.

6. Please indicate, -

(i)

whether the Association ever applied for registration under the Foreign Contribution (Regulation) Act, 1976, if so, -

(a)

the date of submission of application for registration;

(b)

the number and date of the last communication, if any, received from the Ministry;

(c)

whether registration was refused;

(d)

whether application for registration is still pending;

(ii)

whether the Association has close links with another association, or its unit or branch which has been -

(a)

refused registration under the Act;

(b)

prohibited from accepting foreign contribution;

7. Please furnish, -

(i)

details of the activities of the Association during the past three years.

(ii)

copies of the audited statement of accounts of the Association for the past three years.

(iii)

details of the area(s) of operation.

8. Please indicate whether the Association has been specified as an organisation of a political nature, not being a political party, under section 5 of the Act. If so, the details of the notification should be furnished.

9. Please indicate -

(i)

the name and address of the branch of the bank through which the foreign contribution shall be received;

(ii)

Please specify the account number in the said branch of the bank.

[9-A. Whether a recommendation certificate from the competent authority is attached.

(Yes/No)]

10. Any other information which the Association may like to furnish.

Yours faithfully

.....

Chief Functionary for and on behalf of the Association

(Name of Association)

DECLARATION AND UNDERTAKING

The Association named here-in-above affirms that the information furnished above is correct and undertakes -

(i)

to inform the Central Government (Ministry of Home Affairs) within thirty days, if any, change takes place in regard to the name of the Association, its address, its registration, its nature, its aims and objects with documentary evidence effecting the change;

(ii)

to obtain prior permission for change of office bearer(s), if, at any point of time such change causes replacement of 50% or more of the office bearers as were mentioned in the application for registration under the Foreign Contribution(Regulation)Act, 1976 and undertakes further not to accept any foreign contribution except with prior permission till the permission to replace the office-bearer(s) has been granted;

(iii)

not to change the bank or branch of the bank without prior permission of the Central Government. The reasons for change of bank or branch of the bank shall have to be relevant and justifiable; and

(iv)

not to accept any foreign contribution unless it has obtained either the registration number, as applied for hereinabove, or prior permission of the Central Government under sub-section (1-A) of section 6 of the Foreign Contribution (Regulation) Act, 1976.

(Chief Functionary) for and on behalf of the Association

(Name of the Association)

Note. - (i) The receipt of application for registration is not a commitment for grant of registration by the Central Government;

(ii)

An incomplete application, i.e., without the required documents / details / explanations is likely to be rejected summarily;

(iii)

In case the space provided against any column is insufficient separate sheets should be attached; and Please use CAPITAL letters.]

[CERTIFICATE

[Inserted by G.S.R. 63(E), dated 24-1-2000]

(To be submitted along with the application)

This is to certify that the.....(Name of the association) having its registered office at(Address) has been engaged in economic, educational, cultural, religious, social* activities in the(District) of (State) for the

last years.

2. It has undertaken welfare activities in the area and has incurred expenditure (excluding administrative expenditure) amounting to(Amount in rupees) during the last three years on its chosen(Economic, Educational, Cultural, Religious and Social) field of activity.

3. The antecedents of the organisation have been verified and there is nothing adverse against them.

4. The grant of registration to the aforesaid association to accept foreign contribution under the Foreign Contribution (Regulation) Act, 1976, is recommended.

(Recommending Authority)**

(With Seal)

*Strike out whatever is not applicable.

** Any concerned -

1.

) Collector of District.

2.

) Department of the State Government.

3.

) Ministry /Department of the Government of India.]

[Inserted by G.S.R. 63(E), dated 24-1-2000 (w.e.f. 25-1-2000)]

[Inserted by G.S.R. 63(E), dated 24-1-2000 (w.e.f. 25-1-2000)]

Related AI tags, queries and research notes

Translation